

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to host community impact fees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/12/2025</i>

HOUSE No.

By Representative Garry of Dracut, a petition (subject to Joint Rule 12) of Colleen M. Garry relative to marijuana establishment or medical marijuana treatment center host community impact fees. Cannabis Policy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 107 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to host community impact fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3 of chapter 94G of the General Law as appearing in the 2020 Official Edition, is
2 hereby amended by striking the words: “Any cost to a city or town imposed by the operation of a
3 marijuana establishment or medical marijuana treatment center shall be documented and
4 considered a public record as defined by clause Twenty-sixth of section 7 of chapter 4” in lines
5 78-82 and replaced with the following words, “If the community can not document with
6 certainty the costs to the town associated with the operation of a marijuana establishment or
7 medical marijuana treatment center, the community impact fee shall be a Standard Allowance of
8 1 percent of the gross sales of the marijuana establishment or medical marijuana treatment center
9 and shall not be effective for longer than 8 years.”